

STATE OF NEW YORK

1247--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 9, 2025

Introduced by M. of A. SIMON, HEVESI -- Multi-Sponsored by -- M. of A. COOK, WILLIAMS -- read once and referred to the Committee on Transportation -- recommitted to the Committee on Transportation in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law and the public authorities law, in relation to authorizing a residential parking permit system in the city of New York; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative findings and intent. The legislature finds that
2 a lack of parking for residents of the city of New York has resulted in
3 traffic hazards, congestion and air and noise pollution. In addition,
4 such lack of parking poses a hazard to residents and other pedestrians
5 in such areas.

6 The legislature further finds that a residential parking system will
7 reduce such hazards and will reduce pollution levels as well. The legis-
8 lature, therefore, declares the necessity of this act to authorize the
9 city of New York to adopt a residential parking system in accordance
10 with the provisions of this act.

11 § 2. The vehicle and traffic law is amended by adding a new section
12 1640-t to read as follows:

13 § 1640-t. Residential parking system in the city of New York. 1.
14 Notwithstanding the provisions of any law to the contrary, the city of
15 New York may, by adoption of a local law or ordinance, provide for a
16 residential parking permit system and fix and require the payment of
17 fees applicable to parking within the area of the city in which such
18 parking system is in effect in accordance with the provisions of this
19 section.

20 2. Such residential parking permit system may only be established
21 within the city of New York neighborhoods of Brooklyn Community Board
22 two, Brooklyn Community Board four, Brooklyn Community Board six, and
23 the Prospect Heights neighborhood in Brooklyn Community Board eight.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 3. Notwithstanding the foregoing, no permit shall be required on
2 streets where the adjacent properties are zoned for commercial or retail
3 use or in metered parking spaces.

4 4. The local law or ordinance providing for such residential parking
5 system shall:

6 (a) set forth the factors necessitating the enactment of such parking
7 system;

8 (b) provide that motor vehicles registered pursuant to section four
9 hundred four-a of this chapter shall be exempt from any permit require-
10 ment;

11 (c) provide the times of the day and days of the week during which
12 permit requirements shall be in effect;

13 (d) make not less than twenty percent of all spaces within the permit
14 area or areas available to nonresidents and shall provide for short-term
15 parking of not less than ninety minutes in duration in such area;

16 (e) provide the schedule of fees to be paid for such permits; and

17 (f) provide that such fees excluding administrative expenses, shall be
18 remitted by the city of New York to the applicable mass transit agency
19 on a quarterly basis to be deposited in the general transportation
20 account of the New York city transportation assistance fund established
21 pursuant to section twelve hundred seventy-i of the public authorities
22 law.

23 5. No ordinance shall be adopted pursuant to this section until a
24 public hearing thereon has been had in the same manner as required for
25 public hearings on a local law pursuant to the municipal home rule law.

26 6. The provisions of this section shall not apply to any state highway
27 maintained by the state.

28 § 3. Subdivision 1 of section 1270-i of the public authorities law, as
29 added by section 4 of part NNN of chapter 59 of the laws of 2018, is
30 amended to read as follows:

31 1. The authority shall create and establish a fund to be known as the
32 "New York city transportation assistance fund" which shall be kept sepa-
33 rate from and shall not be commingled with any other moneys of the
34 authority. The New York city transportation assistance fund shall
35 consist of three separate accounts: (i) the "subway action plan
36 account"; (ii) the "outer borough transportation account"; and (iii) the
37 "general transportation account". The authority shall make deposits in
38 the subway action plan account of the moneys received by it pursuant to
39 the provisions of subdivision (c) of section twelve hundred
40 ninety-nine-H of the tax law in accordance with the provisions thereof,
41 shall make deposits in the outer borough transportation account of the
42 moneys received by it pursuant to the provisions of subdivision (d) of
43 section twelve hundred ninety-nine-H of the tax law in accordance with
44 the provisions thereof, and shall make deposits in the general transpor-
45 tation account of the moneys received by it pursuant to the provisions
46 of subdivision (e) of section twelve hundred ninety-nine-H of the tax
47 law in accordance with the provisions thereof, [and] pursuant to the
48 provisions of section eleven hundred eleven-C of the vehicle and traffic
49 law, and pursuant to the provisions of paragraph (f) of subdivision four
50 of section sixteen hundred forty-t of the vehicle and traffic law.

51 § 4. This act shall take effect immediately and shall expire December
52 1, 2030 when upon such date the provisions of this act shall be deemed
53 repealed; provided, however, that any such local law or ordinance
54 enacted pursuant to this act shall remain in full force and effect only
55 until December 1, 2030.